

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 08/14/2026

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SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00162

CASE NAME: LAURA HEARNE VS. JAGDISH SAINI

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS AS TO PLAINTIFFS FIRST AND SECOND CAUSES OF ACTION**

FILED BY: SAINI, JAGDISH K.

TENTATIVE RULING:

Before the court is the unopposed motion of Defendants JAGDISH K. SAINI, SONIA G. SAINI, VANDANA LAUGANI and DILIP LAUNGANI's ("Defendants") motion for judgment on the pleadings as to Plaintiff LAURA HEARNE's ("Plaintiff") first and second causes of action.

Defendants have attempted to meet and confer prior to filing the instant motion, and plaintiff filed to respond to their mailed request to discuss this motion. See Ex. B attached to Decl. Of Justice Tecson in

Support of Defendants' Motion for Judgment on the Pleadings as to Plaintiff's First and Second Causes of Action (Tecson Dec.), filed April 7, 2026.

The basis for a motion for judgment on the pleadings must appear on the face of the challenged pleading or be based on facts which a court may judicially notice. (Code of Civil Procedure (CCP) Section 438.) A court may consider a party's admission which cannot be reasonably controverted, even if it negates an express allegation of the pleading. (*Pang v. Beverly Hospital Inc.* (2009) 79 Cal.App. 4th 968, 989.)

Plaintiff alleges she was injured during her tenancy at Defendants' property. Her complaint alleges three causes of action: (1) General negligence; (2) Premises Liability; and (3) Retaliatory Evidence.

On February 4, 2026, the Court granted Defendant's motion for an order deeming Defendant's Requests for Admissions (RFA), Set One, admitted, and awarding Defendant sanctions to be paid by Plaintiff. The court grants the Defendant's Request for Judicial Notice of that order and of the requests for admissions deemed admitted. Those admissions include:

1. That Defendants were not negligent in owning and managing the Subject Property during Plaintiff's tenancy (RFA 1);
2. That Plaintiff has no evidence that Defendants were negligent in owning and managing the Subject Property during Plaintiff's tenancy (RFA 2);
3. That Defendants did not cause injury to Plaintiff during Plaintiff's tenancy (RFA 3); and
4. That Plaintiff has no evidence that Defendants caused injury to Plaintiff during Plaintiff's tenancy (RFA 4).

Tecson Dec., Paragraph 4, Ex. A.

The court agrees that in view of these admissions, Plaintiff will be unable to prevail on the first or second causes of action as a matter of law.

On June 20, 2025, the Court granted Defendants' Motion for Judgment on the pleadings as to Plaintiff's third cause of action for Retaliatory Eviction.

The Defendants' motion for judgment on the pleadings as to Plaintiff LAURA HEARNE's ("Plaintiff") first and second causes of action is **granted without leave to amend**.

Judgment shall be entered in favor of Defendants.

2. 9:00 AM CASE NUMBER: C24-01401
CASE NAME: WILLIAM WU VS. WANAG TAHATAN-BEY
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT**
FILED BY: WU, WILLIAM H.
TENTATIVE RULING:

Plaintiff William Wu's motion to enforce the settlement agreement is **granted**.

Plaintiff sued Defendants Wang Tahatan-Bey (aka Kevin Paul Woodruff, along with several other aliases) and Tanya Stutson for quiet title and slander of title. Defendants were the previous owners of the property, but Plaintiff alleges that he became the rightful owner when he purchased the property in 2023.

The parties attended a mandatory settlement conference with the Honorable Melissa O'Connell on August 7, 2025. The parties agreed to a settlement and all three individuals signed the handwritten settlement. Plaintiff filed this motion because Defendants have failed to finalize the settlement agreement and release as stated in the handwritten settlement agreement.

A motion to enforce a settlement agreement is permitted under Code of Civil Procedure section 664.6(a), which provides:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code of Civil Procedure §664.6(a).)

“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.’ [Citation.] A trial court ‘hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment.’ [Citation.] The trial court may not ‘create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.’ [Citation.] Thus, a trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented, in this case in writing, to the material terms of the settlement. [Citation.]” (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.)

“Once the parties have reached a settlement, however, they ‘may not escape their obligations by refusing to sign a written agreement that conforms to the oral terms.’ [Citation.]” (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.) “When parties intend that an agreement be binding, the fact that a more formal agreement must be prepared and executed does not alter the validity of the agreement. [Citation.]” (*Blix Street Records, Inc. v. Cassidy* (2010) 191 Cal.App.4th 39, 48.)

Here, Plaintiff has shown that the parties entered into a binding settlement agreement that was handwritten and signed by all parties on August 7, 2025. The agreement was to be formalized in a “further settlement agreement and release.” However, the fact that the parties never formalized their agreement with a second writing does not negate the

original settlement agreement entered on August 7, 2025.

In opposing this motion, Defendants raise several points related to the foreclosure proceeding that occurred before Plaintiff obtained title to the property. Such arguments are not relevant to the issues presented in this motion. The focus of this motion is whether the parties entered into a binding settlement agreement. Defendants do not contest that they signed the settlement agreement. Nor have they shown that the parties did not agree to all material terms in the settlement agreement.

The Court finds that the parties entered into a binding settlement agreement on August 7, 2025. The Court also finds that it is appropriate to enforce this settlement with a judgment in Plaintiff's favor.

The Court will enter judgment in favor a Plaintiff Wu with the terms provided in the settlement agreement and the addition of the legal description of the property as stated in the complaint. (Changes from the settlement agreement are underlined, but they need not be underlined in the judgment.)

The judgment shall be as follows:

The parties are identified as follows:

- (1) Plaintiff Wiliam H. Wu ("Wu")
- (2) Defendant Wang Tahatan-Bey (a.k.a. Kevin Paul Woodruff, a.k.a. Kevin-Paul Woodruff, a.k.a Kevin Woodruff, individually and as trustee of the Numinutitska Penatekawa Tribal Trust, as Trustee of the Cestui Que Trust and as Co-Trust of the Woodruff, Kevin-Paul Trust 98-1428993 ("Tahatan-Bey"))
- (3) Defendant Tanya Stutson, as Co-Trustee of the Woodruff Kevin-Paul Trust 98-1428993 ("Stutson")

Wu, Tahatan-Bey and Stutson agree to the following terms to resolve the lawsuit filed in the superior court of the state of California for the County of Contra Costa, Case No. C24-01401:

- (1) Title to the subject real property located at 2013 Mount Hamilton Drive, Antioch, California (and the legal description identified in paragraph 2 of Wu's verified complaint filed May 28, 2024 and stated below) is hereby quieted in William H. Wu as his ownership in fee simple of the entirety of the subject property as against Tahatan-Bey's and Stutsons' claim of any right, title, estate, lien or interested in the subject real property.

The real property is 2013 Mount Hamilton Drive, Antioch, California and bears Assessor Parcel Number (APN) of 055-020-013, with the legal description:

LOT 13, AS SHOWN ON THE MAP OF SUBDIVISION 7201, FILED JANUARY 11, 1991, IN MAP BOOK 354, PAGE 40, CONTRA COSTA COUNTY RECORDS. EXCEPTING THEREFROM:

ALL OIL, GAS, CASINGHEAD GASOLINES AND OTHER HYDROCARBON AND MINERAL SUBSTANCES BELOW A POINT 500 FEET BELOW THE SURFACE OF SAID LAND TOGETHER WITH THE RIGHT TO TAKE, REMOVE, MINE, PASS THROUGH AND DISPOSE OF ALL OIL, GAS, CASINGHEAD GASOLINE AND OTHER HYDROCARBON AND MINERAL SUBSTANCES, BUT WITHOUT ANY RIGHT WHATSOEVER TO ENTER UPON THE SURFACE OF SAID LAND, AS RESERVED IN THE DEED FROM MARY M. HINES, ET AL., RECORDED 5, 1977, BOOK 8536, PAGE 172, OFFICIAL.

- (2) Wu's ownership interest is established nunc pro tunc as of May 9, 2023.
- (3) Tahatan-Bey and Stutson agree to not file, record, or otherwise seek to establish any lien, encumbrance, or any other document asserting any right, title, estate, lien or interested in the subject real property.
- (4) Plaintiff Wu agrees to dismiss entire action including the slander of title and declaratory relief causes of action as against Tahatan-Bey and Stutson.
- (5) This agreement will be formalized in a further settlement agreement and release.
- (6) The Court will maintain continuing jurisdiction of this action pursuant to California Code of Civil Procedure section 664.6 and a judgment may be entered and recorded reflecting this settlement.

3. 9:00 AM CASE NUMBER: C25-01431
CASE NAME: PATRICK SHANAHAN VS. ZOE HOLDING COMPANY, INC.
HEARING IN RE: APPLICATION FOR EXTENSION OF PRELIMINARY INJUNCTION
FILED BY: SHANAHAN, PATRICK
TENTATIVE RULING:

The Court **continues this hearing to August 21, 2026** at 9:00 a.m. in order to review the late-filed opposition papers and plaintiff's reply. As previously ordered, the injunction remains in effect in the interim.

4. 9:00 AM CASE NUMBER: C25-02403
CASE NAME: TOMAS RAMIREZ-NIEVES VS. WHEELCARE EXPRESS, INC
MOTION TO BE RELIEVED AS COUNSEL AS TO TOMAS RAMIREZ-NIEVES
FILED BY: RAMIREZ-NIEVES, TOMAS
TENTATIVE RULING:

The unopposed motion of **Michael Bral** to be relieved as counsel for Plaintiff **Tomas Ramirez-Nieves** is

granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Tomas Ramirez-Nieves' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff's** Counsel to be Relieved as Counsel of Record. This motion is **Granted**.

The Court will execute the Proposed Order lodged on July 8 2026 Granting Attorney Bral's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted. The withdrawal is effective upon attorney Bral's filing the proof of service of signed order on the client and all parties.

5. 9:00 AM CASE NUMBER: C25-03485

CASE NAME: JBBAH LLC, VS. RICKY LENZ

***HEARING ON MOTION IN RE: AND NTC TO SET ASIDE DEFAULT ND DEFAULT JUDGMENT IF ENTERED**

FILED BY: LENZ, RICKY CHARLES

TENTATIVE RULING:

On April 7, 2026, Defendant on his on own behalf filed a motion to set aside the default and if entered, a default judgment. Hearing was set for August 14, 2026.

Defendant is required to serve his papers on the other side and file proof of service, that is proof that the papers were served on the opposing side. In addition, the Defendant is required to file a Proposed Answer or proposed pleading that he intends to file in the lawsuit if the default is set aside.

The court on its own motion **continues the hearing on the Defendant's motion to Set Aside Default to October 2, 2026 at 9:00 a.m.** Defendant must serve his motion papers on the Plaintiff, including a proposed Answer or other pleading, on or before September 10, 2026.

On March 30, 2026, Defendant and Robin Acosta a person who described herself as Defendant's significant other appeared at the Case Management Conference hearing. Ms. Acosta stated to the court that Defendant has dementia.

The court informed Defendant that Plaintiff had filed a motion for default judgment transferring title pursuant to a purchase and sale agreement, that the hearing was set for October 2, 2026, and that Defendant's opposition papers were due to be filed and served September 18, 2026.

6. 9:00 AM CASE NUMBER: C25-03645
CASE NAME: ROLNARD CLEARY VS. GLORIA CARBALLO
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CLEARY, ROLNARD S
TENTATIVE RULING:

The unopposed motion to file a Second Amended Complaint is **granted**. Plaintiff shall separately file the Second Amended Complaint within 15 days of this August 14, 2026 order.

7. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT - CON'TD PER TR OF 6/26/26
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Defendant Samsara Inc.'s Demurrer to Plaintiff Rodrigo Garcia's Complaint, First, Third and Fourth Cause of Action, is **sustained with leave to amend**. Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file an amended complaint.

Background and Allegations of the Complaint

Rodrigo Garcia was hired by Figueroa Tank Lines Inc. as a fuel truck driver on or about December 1, 2024. (Plf.'s January 9, 2026 Complaint ¶ 8.) His duties included operating fuel tanker trucks, performing pre- and post-trip safety inspections, loading and unloading fuel, complying with DOT regulations, and ensuring the safe transport of hazardous materials. (Id. ¶ 9.) Because he transported highly flammable and dangerous materials, his position carried heightened safety obligations, and he was trained and understood that drivers have an independent duty to refuse unsafe equipment, report mechanical defects, and decline to operate vehicles posing a risk to public safety. (Id. ¶ 10.)

Beginning within the first several months of his employment, Plaintiff identified and reported recurring safety issues with Figueroa's fleet to management, including owner Marco Figueroa and his son Kevin Figueroa. (Compl. ¶ 11.) These included tires with visible damage or slash marks, inadequate tire pressure and air leaks, missing antifreeze and overheating risks, mechanical defects rendering trucks unsafe for operation, and failure to timely repair trucks placed out of service. (Ibid.) Management dismissed Plaintiff's concerns, accused him of exaggerating safety risks, pressured him to continue driving, and subjected him to verbal abuse and ridicule, including telling him to "suck it up." (Id. ¶ 12.) Plaintiff reasonably believed that operating unsafe fuel tankers violated DOT regulations, California workplace safety laws, and fundamental public safety principles. (Id. ¶ 13.)

Plaintiff's assigned often required 12-14 hour shifts, leaving insufficient time for legally compliant meal and rest breaks. (Compl. ¶ 14.) He repeatedly complained to management that the volume of

assigned deliveries made it impossible to take required breaks without risking DOT hour violations or failing to complete assigned routes. (*Id.* ¶ 15.) He informed management, including Marco Figueroa, that he was being forced to skip or delay meal and rest breaks in violation of California law. These complaints were ignored, dismissed, or met with hostility. (*Id.* ¶ 16.)

During his initial months of employment Plaintiff complained to management that he had been misled regarding his pay. He had been told during the hiring process he would be paid \$31 per hour during training and \$37 per hour thereafter, but was paid only \$25 per hour during training and never received the promised \$37 rate. When he raised this with Figueroa's owner Marco Figueroa, the owner questioned his masculinity and refused to honor the agreed pay. (Compl. ¶ 17.)

Plaintiff observed pornographic calendars depicting nude women displayed inside company trucks. In or around June 2025 he complained to Kevin Figueroa about the presence of these materials and expressed concern that they created a hostile and sexually charged work environment in violation of Figueroa's written harassment policy and FEHA. Management laughed at him, dismissed his concerns, stated words to the effect that he was in an industry full of men and should expect it, conducted no investigation and took no corrective action. (Compl. ¶ 18.)

In or around May 2025, Figueroa, in conjunction with Samsara, installed forward-facing and cabin-facing cameras in its fleet. Figueroa distributed written policies stating the cameras were intended primarily for accident investigation and safety purposes, were not to be used for routine monitoring of employee performance, were not normally active, and were subject to strict limits on access, retention, and use. (Compl. ¶ 19.) In practice, Defendants used the Samsara system to engage in continuous and covert monitoring of drivers through AI-assisted video analysis, generating so-called "distraction incidents" unrelated to accidents or external safety events. Samsara system's AI independently analyzed driver behavior in real time, identified conduct it characterized as distracted driving or policy violations, and automatically flagged these incidents for employer review without meaningful human oversight or verification. (*Id.* ¶ 20.)

Plaintiff became aware that in-cab footage, driver data, and AI-generated incident reports were accessible to multiple individuals within the Figueroa, including coworkers and non-supervisory personnel, through a shared Samsara portal displaying sensitive personal information including driver's license numbers, home addresses, phone numbers, and video footage of drivers inside company vehicles. Figueroa's owner routinely left himself logged into the portal, allowing other employees to access this data without restriction. (Compl. ¶ 21.) Plaintiff complained to management that the surveillance practices violated his privacy, exceeded the scope of the stated policies, and were potentially unlawful, and informed management that he intended to consult an attorney regarding the legality of the surveillance practices. (*Id.* ¶ 22.)

Following these complaints, Plaintiff was subjected to increased scrutiny, hostility, and discipline, and management began characterizing him as disrespectful or difficult for insisting on compliance with safety and legal standards. (Compl. ¶ 23.)

On or about August 1, 2025, Figueroa issued Plaintiff a written warning alleging he had used a cellphone while driving and covered the in-cab camera. The warning was characterized as a "final warning" and stating that Plaintiff would be terminated if he did it again. Plaintiff refused to sign the write-up, objected that the surveillance practices underlying the discipline violated his privacy rights

and may have been unlawful, informed Kevin Figueroa that he intended to consult an attorney before signing the warning, stated he was too stressed to continue driving that day, and left work to seek legal advice. (Compl. ¶ 24.)

Three days later, on or about August 4, 2025, Figueroa terminated Plaintiff's employment, stating that his cellphone use and refusal to sign the write-up justified discharge. (Compl. ¶ 25.) Plaintiff alleges on information and belief that other drivers engaged in similar or identical conduct, including cellphone use while driving, without being terminated or subjected to comparable discipline, and "Defendants" selectively enforced workplace policies against him because of his protected complaints. (*Ibid.*)

On or about August 16, 2025, Garcia submitted a written complaint identifying discrepancies in his final paycheck, including unpaid work time and unreimbursed business expenses in violation of Labor Code sections 201 and 2802. Defendant responded with hostility and unfounded accusations of misconduct, including falsely alleging that Plaintiff had trespassed on company property. (Compl. ¶ 26.) Plaintiff alleges his termination was in retaliation for repeatedly reporting and opposing practices that he reasonably believed to be violation of federal and state laws. (*Id.* at ¶ 27.)

The complaint asserts four causes of action: (1) retaliation under Labor Code section 1102.5 (Figueroa and Samsara); (2) FEHA retaliation for complaints regarding sexually explicit materials in company vehicles (Figueroa only); (3) wrongful termination in violation of public policy (Figueroa and Samsara); and (4) unfair business practices under Business and Professions Code section 17200 (Figueroa and Samsara).

On March 4, 2026, Samsara filed the instant demurrer to the first, third, and fourth causes of action for failure to state facts sufficient to constitute a cause of action. Regarding the retaliation claims (first and third causes of action), Samsara argues that Plaintiff was employed by Figueroa, that Samsara did not participate in or control any adverse employment action, and that Samsara lacked knowledge of Plaintiff's protected activities. Samsara argues the third cause of action fails derivatively of the first, and that the fourth cause of action fails because Plaintiff cannot establish an unlawful, unfair, or fraudulent business practice by Samsara.

On June 9, 2026, Plaintiff filed an opposition. He argues the demurrer should be overruled or, alternatively, that leave to amend should be granted.

Meet and Confer

Code of Civil Procedure section 430.41 requires that before the filing of a demurrer the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (*Id.*, § 430.41(a)(2).) Thereafter, the moving party must file and serve a declaration detailing their meet and confer efforts. (*Id.*, § 430.41(a)(3).)

Defendant submits a declaration counsel who attests the parties met and conferred as required by the code. (See Farr Decl. ¶¶ 2-4.)

Legal Standard

The standard for construing a complaint on demurrer is long-settled: "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed. [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation.]" (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217,1227.)

First Cause of Action for Retaliation in Violation of Cal. Labor Code § 1102.5

Labor Code section 1102.5(b) protects employees who disclose information disclosing a violation of state or federal law to a government agency or internal supervisor, providing that "[a]n employer, or any person acting on behalf of the employer, shall not retaliate against an employee" for making such a disclosure (Cal. Lab. Code § 1102.5(b), emphasis added).

Samsara relies on *Dawson v. Caregard Warranty Service, Inc.* (C.D. Cal. 2024) 2024 U.S. Dist. LEXIS 33737 to argue that civil liability under section 1102.5 is limited to direct employers (in this case, meaning Figueroa).

That reliance is misplaced. Dawson involved claims against a CEO and corporate president sued in their individual capacities, and the court held that individual supervisors were not liable under section 1102.5 based on the policy considerations articulated in *Reno v. Baird* (1998) 18 Cal.4th 640 and *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158. Those decisions were grounded in policy reasons unique to supervisory employees, such as avoiding personal financial liability over routine management decisions. (*Reno*, at 651; *Jones*, at 1167.)

Dawson did not consider or decide whether a corporate business-entity agent performing delegated employer functions is subject to section 1102.5. However, in *Raines v. U.S. Healthworks Medical Group* (2023) 15 Cal.5th 268 the California Supreme Court addressed that issue in the analogous context of the FEHA and held that business-entity agents can be held liable.

In *Raines*, the Court answered a certified question from the Ninth Circuit regarding FEHA's definition of "employer," which, like Labor Code section 1102.5(b), includes "any person acting as an agent of an employer, directly or indirectly" (Gov. Code § 12926(d).) The *Raines* plaintiffs received job offers conditioned on passing pre-employment medical screenings conducted by U.S. Healthworks Medical Group (USHW), a business contracted by prospective employers. USHW required applicants to complete a health history questionnaire asking invasive and irrelevant questions (including inquiries about venereal disease, mental illness, and menstrual history), and terminated the plaintiff's exam when she refused to answer a question regarding her last menstrual period, causing her conditional job offer to be revoked.

USHW argued that under *Reno* and *Jones*, an agent could never be held liable as an employer under statutory employment laws. The Court rejected the defense, holding that an employer's business-

entity agents can be held liable under the FEHA in appropriate circumstances when the agent has at least five employees and carries out FEHA-regulated activities on behalf of an employer. (*Raines*, 15 Cal.5th at 289.) The Court noted that a business entity that contracts to perform traditional employment functions incurs its own obligation to comply with worker-protection laws. (*Id.* at 290.)

Federal courts applying analogous federal statutes have reached the same conclusion regarding automated employment technology. In *Mobley v. Workday, Inc.* (N.D. Cal. 2024) 740 F.Supp.3d 796, District Court held that an AI software vendor could be directly liable as an agent under federal anti-discrimination law because employers delegated traditional hiring functions to the software. In evaluating agent status, *Mobley* distinguished between passive software tools and active decision-making systems. (*Id.* at 808.) A vendor providing a passive tool, such as a spreadsheet used to organize data or an email system, does not act as an agent because the tool itself does not participate in the employment determination. (*Ibid.*) In contrast, because Workday's software actively participated in the decision-making process by evaluating applicants and executing rejection decisions, it qualified as an agent. (*Id.* at 807–808.)

Plaintiff alleges that Figueroa delegated to Samsara the traditional employer task of continuously monitoring, scoring, and generating evaluative determinations of driver misconduct, and that Samsara's AI system independently classified behavior as reportable violations that formed the basis for discipline. (Compl. ¶ 33.) Plaintiff has adequately alleged that Samsara acted as an agent under section 1102.5(b) by performing delegated employment functions.

Though Samsara might be considered an Figueroa's agent for purposes of liability, how the Court rules on the issue is not dispositive. Agency status addresses who may be sued, but it does not relieve Plaintiff of the obligation to plead facts showing that Samsara engaged in retaliation. As against Samsara, the first cause of action (whistleblower retaliation under Labor Code section 1102.5) and third cause of action (wrongful termination in violation of the public policy) have the same elements. To state either claim, Plaintiff must allege facts showing that: (1) he engaged in a protected activity (i.e., the disclosure of a violation of state or federal law), (2) Samsara subjected him to an adverse employment action, and (3) a causal link exists between the two. (*Manavian v. Department of Justice* (2018) 28 Cal.App.5th 1127, 1141.)

Here, Plaintiff does not allege facts to show that Samsara subjected Plaintiff to an adverse employment action, as it is undisputed that Figueroa terminated his employment. While Plaintiff argues that Samsara's reports caused his termination, the Complaint actually alleges that those reports provided pretextual cover for Figueroa's own retaliatory decision. (See, e.g., Compl. ¶¶ 25, 27, 37, 50, 56.)

Plaintiff also fails to plead facts showing Samsara's knowledge of protected activity. While Plaintiff alleges he made various complaints, they were all to Figueroa management. Plaintiff argues that Samsara knew of his protected activity because its system detected and reported his covering of the camera. (Opp. 13:9–15 [asserting "A defendant whose system detects, evaluates, and reports the very conduct that constitutes the protected activity cannot be heard to say it had no knowledge of it. To classify the conduct as a violation, Samsara necessarily registered it and assigned it an evaluative, culpable meaning."].) However, there is no reasonable inference to be drawn from these facts that Samsara was aware of Plaintiff's alleged whistleblowing activity.

Plaintiff's reliance on *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95 to bypass this lack of knowledge is misplaced. In *Reeves*, a supermarket clerk complained to his manager (Demarest) about sexual harassment. Demarest resented the complaints and later weaponized a minor dispute between plaintiff and another employee by initiating a security investigation that resulted in a biased, one-sided report. An innocent corporate decisionmaker (Hollis), who knew nothing of the plaintiff's harassment complaints, relied on that report to fire the clerk. (*Reeves*, at 101–105.)

Safeway argued it could not be liable for retaliation because the decisionmaker in the termination acted without retaliatory intent and was ignorant of the plaintiff's protected activity. The Court of Appeal rejected that defense, holding the employer liable because the supervisor who instigated the investigation and supplied the report, Demarest, harbored retaliatory animus against the plaintiff and used the innocent decisionmaker as a tool to carry out the discharge. (*Id.* at 108–110.)

Reeves applies where the party providing the evaluation or input actually harbors retaliatory animus. Unlike the supervisor in *Reeves*, who knew of the protected activity and set a termination in motion out of spite, Samsara is not alleged to have known anything about Plaintiff's complaints. Similarly, in the *Mobley* case, while the court allowed disparate impact claims to proceed against Workday under an agency theory, it dismissed the disparate treatment claims because the complaint lacked facts showing that Workday acted with discriminatory intent. (*Mobley*, 740 F.Supp.3d at 812-13.) Even under an agency theory, Plaintiff cannot maintain a retaliation claim against Samsara without alleging facts to support that it acted with retaliatory motive.

Plaintiff's allegation on information and belief at paragraph 25 of the complaint that "Defendants" selectively enforced workplace policies against him due to his complaints does cure this pleading defect. A complaint may allege facts on information and belief, but to do so it must allege what basis the information has in whose personal knowledge. (See *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159 [A pleading made on information and belief is insufficient if it "merely assert[s] the facts so alleged without alleging such information that lead[s] [the plaintiff] to believe that the allegations are true"].) A plaintiff may support information and belief allegations with a variety of allegations, including hearsay, or reasonable inference from other facts. A plaintiff may not base allegations on suspicion. Because the Court is granting leave to amend, Plaintiff will have the opportunity to allege the factual basis for allegations made on information and belief.

Third Cause of Action for Wrongful Termination in Violation of Public Policy

The third cause of action is for wrongful termination in violation of public policy. (See *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167.) As discussed above, Plaintiff fails to adequately allege the essential elements of a section 1102.5 retaliation claim against Samsara. Because Plaintiff has not sufficiently pleaded the underlying statutory claim, the derivative *Tameny* claim also fails. In light of this determination, the Court need not reach Samsara's additional argument that common law wrongful termination claims may only be stated against employers (Figueroa, in this instance).

Fourth Cause of Action for Violation of Business & Professions Code § 17200

The fourth cause of action alleges violating of the Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., which prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th

163, 180.)

The demurrer to the fourth cause of action for violation of the UCL is sustained on the grounds asserted in the moving papers. Group pleading renders the UCL claim confusing, as the vast majority of the alleged misconduct targets actions attributable to Figueroa. To the extent Plaintiff attempts to base the UCL claim on privacy violations arising from the shared portal, the complaint fails to plead sufficient facts pinning liability on Samsara. In Paragraph 21, Plaintiff alleges that continuous video footage and personal identifying information were accessible to non-supervisory coworkers through a shared portal. (Compl. ¶ 21.) However, Plaintiff appears to attribute this exposure to Figueroa's own administrative choices, alleging that Figueroa's owner left himself logged into the system. (*Ibid.*)

Under heightened pleading standards that apply to UCL claims, collective pleading is insufficient, and Plaintiff fails to allege specific facts showing that Samsara was directly responsible for enabling excessive surveillance, setting overbroad access permissions, or causing the alleged exposure of personal data. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.)

Plaintiff has leave to amend. The Court will evaluate any amended pleading to determine whether Plaintiff has stated facts establishing UCL liability against Samsara.

Leave to Amend

As this is the first time Plaintiff's allegations against Samsara have been challenged, the Court will grant leave to amend. (See *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304 [in the case of an original complaint, it is an abuse of discretion to deny leave to amend unless the complaint is facially incapable of amendment, even where leave to amend is not requested].)

Plaintiff shall have 30 days to amend the complaint. In any amended pleading he files, Plaintiff must specify what each defendant did, instead of grouping them together.

8. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
***HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT / ADVANCED FROM 9/18/2026 PER**
TR OF 7/10/26
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi's Motion to Set Aside Default.

Procedural Background

Plaintiff filed the Complaint on January 20, 2026. On March 11, 2026, Defendants filed a Special Motion to Strike Complaint (Anti-SLAPP – Code of Civil Procedure § 425.16).

Thereafter, on March 12, 2026, Plaintiff filed a Proof of Service of Summons indicating Defendant Kalnytskyi was served by substitute service on January 30, 2026. The declaration of mailing indicates that the summons and complaint were mailed to Mr. Kalnytskyi on that same date.

On March 13, Plaintiff sought default against Defendant Kalnytskyi. A default was entered that same day.

On May 1, 2026, Defendant Kalnytskyi filed the instant motion to set aside.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). “The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) “Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute.” (*Ibid.*)

The ‘discretionary’ provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The ‘mandatory’ provision that relates to times when an attorney admits fault in causing the default. That provision is not at issue in this matter.

Analysis

Mr. Kalnytskyi argues that the default was improper because he filed a responsive pleading – i.e. his motion to Special Motion to Strike Complaint – **before** the default was entered. As such, the default is improper.

A default is allowed if no “notice of motion to strike of the character specified in subdivision (f) ... has been filed with the clerk of the court within the time specified in the summons, or within further time as may be allowed....” (Code Civ. Proc. § 585 (b).) Subdivision (f) states, in pertinent part: “A notice of motion to strike within the meaning of this section is a notice of motion to strike the whole or any part of a pleading filed within the time which the moving party is required otherwise to plead to that pleading.” (Code Civ. Proc. § 585 (f).)

It is worth noting that Rutter has the following statement in the section listing the types of filings which preclude a default from being entered: “Arguably, an anti-SLAPP motion (if filed within the time allowed to respond to the complaint) should prevent entry of default, though there is no known case in point.”

Here, the PoS shows that Defendant Kalnytskyi was served via substitute service on January 30, 2026. The proof of mailing indicates that papers were mailed that same date. Per CCP 415.20, service of the summons via substitute service is “deemed complete on the 10th day after the mailing.” (Code Civ. Proc. § 415.20 (a).) Thus, service was considered complete on February 9.

A responsive pleading is due 30 days after service. (Code Civ. Proc. § 412.20 (a)(3).) As such, a responsive pleading – which includes a motion to strike – was due on or before March 11, 2026. Defendant filed the Special Motion to Strike on March 11, 2026.

Based on the above, the Special Motion to Strike was timely filed and counts as a responsive pleading on file that would negate the ability to enter a default.

Conclusion

Defendant Kalnytskyi's motion to set aside the default is **granted**. The anti-slapp motion constitutes his responsive pleading and is scheduled to be heard on August 21.

9. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
*HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT AS TO AKRIAN INC AND TO
DISMISS AKRIAN INC FROM THIS ACTION
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Akrian Inc.'s Motion to Set Aside Default.

Procedural Background

Plaintiff filed the Complaint on January 20, 2026. On May 4, 2026, Plaintiff filed a Proof of Service of Summons indicating that Akrian Inc. was served via substitute service on March 14, 2026. The attached Declaration of Mailing indicates the summons and complaint were mailed on March 16, 2026. Thereafter, on May 5, 2026, Plaintiff sought and obtained entry of default against Akrian Inc. as no responsive pleading had been filed.

On May 13, 2026, Defendant in pro per Roman Kalnytskyi filed the instant motion to set aside entry of default on behalf of Defendant Akrian Inc. The motion sought to set aside the entry of default as well as an order dismissing Akrian Inc. for this action.

Legal Standard

Plaintiff seeks to set aside the dismissal with prejudice entered against him pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

The 'discretionary' provision is set forth at the beginning of the statute:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted,

and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

The 'mandatory' provision relates to times when an attorney admits fault in causing the default. That provision is not at issue here.

Analysis

California law is clear that a corporation "cannot represent itself in court in propria persona but must appear through an agent who is a member of the bar." (*Rogers v. Mun. Court* (1988) 197 Cal.App.3d 1314, 1318) "A corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney." (*Merco Constr. Engrineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729 citations omitted.) If a corporation agent, for example an officer or director, attempts to represent the corporation in court proceedings, and s/he is "not an attorney, that person would be engaging in the unlicensed practice of law." (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

In the motion, Mr. Kalnytskyi makes clear that he "is fully aware that under California law, corporations must be represented in court by a licensed attorney." (Motion at 3:7-9.) He then goes on to argue on behalf of Akrian Inc.

As noted by Plaintiff, the Court has already informed Mr. Kalnytskyi that "Defendant Akrian, Inc. must be represented in court by an attorney and Mr. Kalnytskyi cannot represent Akrian, Inc. in court." (July 10, 2026 Order re Special Motion to Strike.) Despite this, Mr. Kalnytskyi continues to attempt to represent and defend Akrian Inc.

As Mr. Kalnytskyi does not have the authority to file this motion on behalf of Akrian, Inc. – the motion is **denied**.

Conclusion

Defendant Akrian, Inc.'s motion to set aside the default is **denied** to the extent the Court can even rule on a motion improperly filed by a lay person on behalf of a corporate defendant.

Mr. Kalnytskyi is again reminded that he must have an attorney represent Akrian, Inc. and that his continued attempts to represent that entity as a non-attorney may subject him to sanctions for the unlicensed practice of law. ("[T]he unlicensed person who practices law is potentially subject to various criminal, civil and contempt sanctions." *Russell v. Dopp* (1995) 36 Cal.App.4th 765, 774.)

10. 9:00 AM CASE NUMBER: MSC22-00199

CASE NAME: MANSELL-MOULLIN VS HOSMER

MOTION TO BE RELIEVED AS COUNSEL AS TO PLTF

FILED BY:

TENTATIVE RULING:

The unopposed motion of **Elizabeth Poppy and Colleen Cleary and the law firm of Burke, Williams & Sorensen, LLP** to be relieved as counsel is **withdrawn** and hearing is **vacated** at the rest of the

moving party.

11. 9:00 AM CASE NUMBER: N25-0754

CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA

HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE

((CONTINUED FROM 03.27.2026))

FILED BY:

TENTATIVE RULING:

As discussed below, the **demurrers are sustained, without leave to amend**. The **motions to strike are denied as moot**.

I. Background Common to the Four Petitions

Kenneth Lee Storey was allegedly injured when Paul George Nelson mishandled a firearm. Storey retained counsel and filed a personal injury lawsuit, *Kenneth Lee Storey v. Paul George Nelson*, Contra Costa Superior Court, Case No. C17-02127. In November of 2018 Storey obtained a default judgment in the amount of \$1,205,333.37 against Nelson. On April 25, 2019, an Abstract of Judgment was recorded with the Contra Costa County Recorder's Office naming Storey as a judgment creditor.

Judgment debtor Nelson then failed to pay property taxes and respondents sold the property to recover the taxes owed on May 24, 2023. The tax deed was recorded on June 13, 2023, reflecting that, after satisfaction of all delinquent taxes, the 'excess proceeds' are \$361,007.97. The County gave notice to certain parties, including Storey. Several parties filed claims, not including Storey. All the claims were denied except a claim by the Franchise Tax Board, which was paid \$4,847.68 from the funds based on a claim it had submitted.

The present consolidated matter involves four separate petitions for writs of mandate, among other claims, filed by those parties that filed claims to the funds. Each of petitioners' claims stem from the original default judgment in favor of Storey. Petitioners seek to compel the respondents (Contra Costa County and its Treasurer-Tax Collector, Dan M. Mierzwa) to set aside the denials of petitioners' claims and release the excess proceeds from the sale of this property to them according to their claimed interests. The four actions were consolidated for all purposes on February 2, 2026 pursuant to Code of Civil Procedure section 1048 and stipulation of the parties.

The Court now rules on the four demurrers filed by respondents pursuant to California Code of Civil Procedure sections 430.10, subdivision (e) (relating to a demurrer for failure to state facts sufficient to constitute a cause of action), 1089 (providing that "[o]n the date [...] on which the application for the writ is noticed, [...] the party upon whom the writ or notice has been served may make a return by demurrer [...]"), and 1109 (providing for the applicability of statutes governing civil actions to writ proceedings), and California Revenue and Taxation Code section 4675 (relating to the disbursement of excess proceeds).

II. Legal Background

The court in *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, quoted below, sets

forth the legal background against which the present matter proceeds.

The general revenue of a city and county is collected by a tax on all nonexempt real property within the jurisdiction of the taxing agency. [Citation.] Under the statute, tax on real property is a lien against the property assessed. [Citation.] If the tax is unpaid, a default is declared and tax-defaulted residential property may be sold after five years of delinquency. [Citation.] Tax-defaulted property is generally sold at public auction to the highest bidder. [Citation.] The sale proceeds are used to pay taxes and costs. [Citation.] Any excess in the sale proceeds is held in a trust fund and “parties of interest” in the property have one year to file a claim for the excess proceeds. [Citation.] Unclaimed proceeds are transferred to the county general fund. [Citation.]

[...]

Section 4675 was enacted after “a 74-year-old widow was evicted” from the home she lived in for almost 50 years “because she hadn’t paid \$493 in back taxes. The home was sold for \$7,500 and the county and other local governmental agencies kept all of the money in accordance with existing state law.” [Citation.] The Legislature found that then-existing law “over-reimburses local agencies for delinquent taxes when the proceeds of sale exceed taxes, interest and penalties” and introduced legislation to ensure that “realized equity in excess of taxes due would be returned to the former owner.” [Citation.] The bill was “designed to insure that no one—whether private or a public agency—will receive a windfall profit from the sale of tax deeded property. It sets forth an equitable procedure for settling obligations in the event of a tax sale.” [Citation.]

When first introduced, the bill provided that excess proceeds could be claimed by “the former owner of the property or his successor in interest.” [Though certain amendments have been made to the text of the statute], legislative and executive reports continued to summarize the law as one providing excess proceeds to the “former owner.” [Citation.]

(*Carloss, supra*, 242 Cal.App.4th at 126, 128-129.)

Revenue and Taxation Code section 4675 currently states, in relevant part:

(a)

(1) Any party of interest in the property may file with the county a claim for the excess proceeds, in proportion to that person’s interest held with others of equal priority in the property at the time of sale, at any time prior to the expiration of one year following the recordation of the tax collector’s deed to the purchaser.

(2) The claim shall be postmarked on or before the one-year expiration

date to be considered timely. [...].

(b) After the property has been sold, a party of interest in the property at the time of the sale may assign their right to claim the excess proceeds only by a dated, written instrument that explicitly states that the right to claim the excess proceeds is being assigned, and only after each party to the proposed assignment has disclosed to each other party to the proposed assignment all facts of which that party is aware relating to the value of the right that is being assigned. Any attempted assignment that does not comply with these requirements shall have no effect. This subdivision applies only with respect to assignments on or after the effective date of this subdivision.

(c) Any person or entity who in any way acts on behalf of, or in place of, any party of interest with respect to filing a claim for any excess proceeds shall submit proof with the claim that the amount and source of excess proceeds have been disclosed to the party of interest and that the party of interest has been advised of their right to file a claim for the excess proceeds on their own behalf directly with the county at no cost.

(d) The claims shall contain any information and proof deemed necessary by the board of supervisors to establish the claimant's rights to all or any portion of the excess proceeds.

(e)

(1) [...] no sooner than one year following the recordation of the tax collector's deed to the purchaser, and if the excess proceeds have been claimed by any party of interest as provided herein, the excess proceeds shall be distributed on order of the board of supervisors to the parties of interest who have claimed the excess proceeds in the order of priority set forth in subdivisions (a) and (b). For the purposes of this article, parties of interest and their order of priority are:

(A) First, lienholders of record prior to the recordation of the tax deed to the purchaser in the order of their priority.

(B) Second, any person with title of record to all or any portion of the property prior to the recordation of the tax deed to the purchaser.

[...]

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) A court properly sustains a demurrer without leave

to amend when the facts are not in dispute and the nature of the plaintiff's claim is clear, but, under the substantive law, no liability exists. (*Traverso v Department of Transp.* (2001) 87 Cal.App.4th 1142, 1144.)

IV. Petition of Rains Lucia Stern St. Phalle & Silver, PC, N25-0756

A. Factual Background

Beginning on September 15, 2016, Rains Lucia Stern St. Phalle & Silver, PC ("Rains Lucia") represented Storey in his suit against judgment debtor Nelson. Pursuant to the firm's retainer agreement, Storey agreed to pay petitioner attorneys' fees in the amount of "forty percent (40%) of the gross amount recovered before deducting costs and expenses after a claim or lawsuit is filed." (Rains Lucia Petition filed April 10, 2025, Ex. 1.)

On April 25, 2019, Rains Lucia filed an Abstract of Judgment with the Contra Costa County Recorder's Office, as instrument no. 2019-0058109-00. The Abstract of Judgment named Storey as the judgment creditor. (Rains Lucia Petition, Ex. 2.) On January 10, 2020, Rains Lucia, Vantage Point Law, and their client, Kenneth Storey, executed an Addendum to Retainer Agreement Related to Attorney Fee Division, which allocated forty percent (40%) of the total gross recovery as follows: 50% to Rains Lucia; 25% Vantage Point Law; and 25% to the referring attorneys, the Law Office of McDonald & Mannion. (Rains Lucia Petition, ¶26.)

In March, 2021, the Superior Court issued an Order for the sale of Nelson's real property at issue here, with any proceeds to be used to satisfy the judgment and a Sheriff's sale took place, but there were no bidders so the property was not sold. (Rains Lucia Petition, ¶31.) Later the property was sold at a tax default sale and, as a "party of interest," Rains Lucia was sent a notice by the County of the excess proceeds once the tax sale deed had been recorded. (Rains Lucia Petition, ¶47, Ex. 9.) On May 17, 2024, almost a year after the tax deed was recorded, Rains Lucia submitted a claim to excess proceeds to the County Treasurer-Tax Collector. (Rains Lucia Petition, ¶¶48-49, Ex. 10.)

While it did not initially receive a denial from the County, Rains Lucia learned that Vantage Point Law had received a denial letter and contacted the County, which then emailed a similar denial to Rains Lucia. The letter stated that the claims was denied because, "a claim (or claims) of higher priority was awarded the excess proceeds." (Rains Lucia Petition, ¶51, Ex. 12.) On April 9, 2025, the County Tax Collector's office sent an email to Rains Lucia, referencing a second letter denying the claim based on Rains Lucia not being a "lienholder of record." (Rains Lucia Petition, ¶52.)

Petitioner filed its petition on April 10, 2025 alleging three causes of action: (1) Writ of Mandate Pursuant to Code of Civil Procedure § 1085, (2) Writ off Mandate Pursuant to Code of Civil Procedure §1094.5, and (3) Declaratory Relief Pursuant to Code of Civil Procedure §1060. Following meet and confer efforts (see Declaration of Jaskiran K. Samra, ¶8), respondents filed this demurrer.

B. Objections to Evidence

Respondents object to the Declaration of Eustace De Saint Phalle in Support of Rains Lucia's Opposition, filed March 23, 2026. The standard on demurrer does not permit the Court to consider the truth of facts not alleged or subject to judicial notice. Accordingly, the objection is **sustained**.

C. Discussion

(1) Administrative Mandamus Pursuant to Code of Civil Procedure section 1094.5

Respondents demur on the basis that there was no hearing, nor was one required, and therefore administrative mandamus is not a remedy available to petitioner. The petition gives no

indication that a hearing was held or required, as required for section 1094.5 to apply. (Code Civ. Proc., §1094.5, subd. (a).)

In arguing that 1094.5 does apply, petitioner cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, wherein the court proceeded under the administrative mandate statute in deciding a matter regarding excess proceeds. However, in that case, “the county held an evidentiary hearing to evaluate the claims,” presided over by a hearing officer. (*Carloss, supra*, 242 Cal.App.4th at 121-122.) Further, the other cases cited by petitioner do not support the application of 1094.5. (*Mission Valley East, Inc. v. County of Kern* (1981) 120 Cal.App.3d 89, 99, fn. 6 [“This is a ‘common law’ or traditional mandamus proceeding under Code of Civil Procedure section 1085, not administrative mandamus under section 1094.5.”]; *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1371 [not mentioning whether mandamus was traditional or administrative].)

A hearing is not contemplated by the statute at issue, and no hearing was held. The petition has been improperly submitted under Code of Civil Procedure section 1094.5, which applies only where the validity of a “final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer,” is under review. (Code Civ. Proc., §1094.5, subd. (a).) The more complex analysis of when an administrative writ may be proper even in the absence of a hearing do not apply to the determination at issue here.

The demurrer is appropriately sustained as to the cause of action for administrative mandamus. Leave to amend would be permitted if the only concern was the type of mandate being sought, but that is not the only defect here. There is a more fundamental issue that Rains Lucia cannot state a claim for relief because it is not a lienholder of record.

(2) Rains Lucia is Not a Lienholder of Record or Otherwise Entitled to Claim the Excess Funds

Respondents argue that a “lienholder of record,” for purposes of excess proceeds, is a person who has or owns a lien that appears within public records after recording, or who can prove they had a recorded lien through other recorded documents. The demurrer cites various authorities for this position, perhaps the most persuasive of which is *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, wherein the appellate court held that the trial court wrongly directed a county auditor’s office to pay a claimant who was the holder of only an unrecorded title to property sold at tax sale. While parties agree that case did not directly address the meaning of “lienholder of record,” the case discussed the meaning of a related term, “person with title of record,” used in the same statute and construed it to mean “a holder of recorded title.” (*Id.* at 1373.) The same meaning should generally be attributed to a term or phrase when it is used in a similar manner in two related statutes concerning the same subject. (*Dieckmann v. Superior Court* (1985) 175 Cal.App.3d 345, 356.)

Rains Lucia opposes the point, arguing that its lien became operative “automatically” at the time of judgment and when the judgment was recorded. Such argument would impose an impossible burden on the respondents to seek out whether every attorney relationship resulted in some sort of lien not apparent from the public record.

Petitioner’s abstract does not create any obvious interest as to Rains Lucia, only as to Storey. While the abstract lists Rains Lucia as Storey’s attorneys, the “attorney fees” portion of the form is blank. The form further notes that “[a]ll judgment creditors and debtors are listed on this abstract.” Accordingly, Storey is the judgment creditor and Rains Lucia is not a lienholder “of record.”

While Rains Lucia might have been able to assist its client with filing a claim to excess proceeds, it was not entitled to claim the proceeds on its own behalf. That is what Rains Lucia attempted to do. The claim form does not purport to be seeking anything on Storey's behalf.

If Rains Lucia was entitled to a lien on Storey's recovery, it first had to ensure Storey would recover something and then seek its portion with respect to him. By seeking the funds on its own behalf, Rains Lucia sought to bypass this necessary step. (See *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1373-1374 [applying the plain terms of § 4657 to limit claimants to holders of "title of record," and questioning the rationale and holding of *Fjaeran v. Board of Supervisors* (1989) 210 Cal.App.3d 434 to the extent it did not follow the statute's terms].) A lien for attorneys' fees is, in reality, "an equitable assignment for security." (*Wagner v. Sariotti* (1943) 56 Cal.App.2d 693, 697; see also *First Corp. v. County of Santa Clara* (1983) 146 Cal.App.3d 841, 842 [claiming parties do not succeed to the rights of the nonclaiming parties].)

V. Petition of Vantage Point Law, Inc., N25-0754]

A. Factual Background

Petitioner, Vantage Point Law, Inc., is a law firm that, on January 10, 2020, entered into a limited scope agreement for collection of the Storey's judgment with Rains Lucia and Storey himself. (Vantage Point Law Petition, filed April 10, 2025, ¶¶18-19, Ex. 5-6.) The agreement states petitioner's attorneys' fees for "enforcement of the Judgment will be ten percent (10%) of the gross sum recovered before deducting costs and expenses." (*Ibid.*)

Respondents mailed a Notice of Excess Proceeds to Storey via his attorneys, Rains Lucia, or about June 16, 2023, three days after the tax deed was recorded. (Vantage Point Law Petition, ¶27.) Almost a year later, on May 9, 2024, Vantage Point Law submitted a claim to \$186,082 from the excess proceeds. (Vantage Point Law Petition, ¶28, Ex. 11.) While preparing its claim, Vantage Point Law discovered that Storey had assigned his judgment to Capital Equity Management Group, Inc. (CEMG) and Vantage Point Law submitted a "NOTICE OF LIEN FOR ATTORNEYS' FEES AND COSTS; AND VERIFIED THIRD PARTY CLAIM OF SECURITY INTEREST PURSUANT TO CCP§§720.210 ET SEQ." which asserted that the assignment to CEMG was made with its lien attached pursuant to California Civil Code §2883(a). (See Vantage Point Law Petition, Ex. 12, "Notice," signed May 8, 2024, 5:21-26.)

Respondents acknowledged receipt of the claim on May 9, 2024, stating the claim was timely received. (Vantage Point Law Petition, ¶30, Ex. 13.) Petitioner was never notified that its claim was incomplete. (*Id.* at ¶31.) Respondents sent Vantage Point Law a letter dated January 10, 2025, stating that "a claim (or claims) of higher priority was awarded the excess proceeds." (*Id.* at ¶33.)

Vantage Point Law sent respondents a letter on February 13, 2025 stating that County's policy is for the Tax Collector's Office to either approve or deny the claim, in whole or in part, and notify the claimant of the decision. (Vantage Point Law Petition, ¶37.) As of February 13, 2025, Vantage Point Law had not been informed whether or not the claim was denied. (*Ibid.*) Pursuant to a Freedom of Information Act request, the County provided one claim, submitted by the Franchise Tax Board, for \$4,847.68. Vantage Point Law alleges the County overlooked the Franchise Tax Board's discrepancies in its claim and gave that entity preferential treatment. (Vantage Point Law Petition, ¶38.)

On or about February 28, 2025, the Tax Collector's Office sent a letter to "clarify" its January 10th Letter, in which the office took the position that Vantage Point Law, Inc.'s claim was denied because it was not a "lienholder of record." (Vantage Point Law Petition, ¶39, Ex. 17.) Petitioner alleges this representation was false (arbitrary and capricious) and that the respondents are engaged

in self-dealing as a result. (Vantage Point Law Petition, ¶¶40-43.)

Vantage Point Law alleges respondents violated their legal duties pursuant to Revenue and Taxation Code sections 4674 through 4676 in that they failed to, among other things: (a) properly review the claims, supporting evidence, and applicable laws; (b) grant Petitioner's claim, and (c) issue the Excess Proceeds to Petitioner. Vantage Point Law sets forth three causes of action: one for traditional mandate, one for administrative mandate, and one for declaratory and injunctive relief.

Respondents, after meeting and conferring with petitioner (Declaration of Jaskiran K. Samra, ¶8), now demur to each cause of action.

B. Discussion

(1) Administrative Mandamus Pursuant to Code of Civil Procedure section 1094.5

Respondents demur on the basis that there was no hearing, nor was one required, and therefore administrative mandamus is not a remedy available to petitioner. The petition gives no indication that a hearing was held or required, as required for section 1094.5 to apply. (Code Civ. Proc., §1094.5, subd. (a).)

In arguing that 1094.5 does apply, petitioner cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, wherein the court proceeded under the administrative mandate statute in deciding a matter regarding excess proceeds. However, in that case, "the county held an evidentiary hearing to evaluate the claims," presided over by a hearing officer. (*Carloss, supra*, 242 Cal.App.4th at 121-122.) Further, the other cases cited by petitioner do not support the application of 1094.5. (*Mission Valley East, Inc. v. County of Kern* (1981) 120 Cal.App.3d 89, 99, fn. 6 ["This is a 'common law' or traditional mandamus proceeding under Code of Civil Procedure section 1085, not administrative mandamus under section 1094.5."]; *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1371 [not mentioning whether mandamus was traditional or administrative].)

A hearing is not contemplated by the statute at issue, and no hearing was held. The petition has been improperly submitted under Code of Civil Procedure section 1094.5, which applies only where the validity of a "final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer," is under review. (Code Civ. Proc., §1094.5, subd. (a).) The more complex analysis of when an administrative writ may be proper even in the absence of a hearing do not apply to the determination at issue here.

The demurrer is appropriately sustained as to the cause of action for administrative mandamus. Leave to amend would be permitted if the only concern was the type of mandate being sought, but that is not the only defect here. There is a more fundamental issue that Vantage Point cannot state a claim for relief because it is not a lienholder of record.

(2) Vantage Point Law is Not a "Lienholder of Record" or Otherwise Entitled to Claim the Excess Funds

Respondents contend the petition fails to state a cause of action. Specifically, respondents contend: (1) petitioner is not a "lienholder of record," (2) no lien on excess proceeds can be placed via equitable assignment where the petitioner's client does not first recover the funds, (3) the right to collect excess proceeds must be specifically assigned, which the alleged equitable assignment fails to do, and (4) petitioner lacked authorization to submit a claim for excess proceeds on its client's behalf.

Respondents argue that a "lienholder of record," for purposes of excess proceeds, is a person

who has or owns a lien that appears within public records after recording, or who can prove they had a recorded lien through other recorded documents. The demurrer cites various authorities for this position, perhaps the most persuasive of which is *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, wherein the appellate court held that the trial court wrongly directed a county auditor's office to pay a claimant who was the holder of only an unrecorded title to property sold at tax sale. While parties agree that case did not directly address the meaning of "lienholder of record," the case discussed the meaning of a related term, "person with title of record," used in the same statute and construed it to mean "a holder of recorded title." (*Id.* at 1373.) The same meaning should generally be attributed to a term or phrase when it is used in a similar manner in two related statutes concerning the same subject. (*Dieckmann v. Superior Court* (1985) 175 Cal.App.3d 345, 356.)

Vantage Point Law opposes the point, arguing that the existence of an attorney lien pursuant to Civil Code §2833, is "secret" and, while not necessarily apparent from any recorded document, would still make Vantage Point Law a lienholder. But the argument brushes over the "of record" requirement.

The opposition cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116 as supporting its position that it need not be reflected in the public record to have a lien. After all, section 4675 was enacted "to insure that no one—whether private or a public agency—will receive a windfall profit from the sale of tax deeded property." (*Carloss, supra*, 242 Cal.App.4th at 128.) *Carloss* involved a significantly different situation in which the lienholder simply did not possess the proof typically used in such a situation (a recorded deed) to show that it was a "lienholder of record." Instead, the lienholder there simply had to resort to other recorded documents as proof. (*Carloss, supra*, 242 Cal.App.4th at 131.) *Carloss* did not involve a "secret" lien.

As discussed in the reply brief filed by respondents, there is no presumption that the excess proceeds must be distributed to parties of interest where they are not properly claimed. (*First Corp. v. County of Santa Clara* (1983) 146 Cal.App.3d 841, 846-847.) The only recorded document that can be said to support Vantage Point Law's lien is the Abstract of Judgment recorded in April 2019, but that document only lists Storey as a lienholder of record. (Vantage Point Law Petition, Exhibit 1.) Storey made no claim on the excess proceeds. Accordingly, Vantage Point Law has not right as a "lienholder of record."

While Vantage Point Law might have been able to assist its client with filing a claim to excess proceeds, it was not entitled to claim the proceeds on its own behalf. That is what Vantage Point Law attempted to do. The claim form does not purport to be seeking anything on Storey's behalf.

Respondents further point out that Vantage Point Law's rights were to the Storey's *recovery* and not the total judgment. If Vantage Point Law was entitled to a lien on Storey's recovery, it first had to ensure Storey would recover something and then seek its portion with respect to him. By seeking the funds on its own behalf, Vantage Point Law sought to bypass this necessary step. (See *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1373-1374 [applying the plain terms of § 4657 to limit claimants to holders of "title of record," and questioning the rationale and holding of *Fjaeran v. Board of Supervisors* (1989) 210 Cal.App.3d 434 to the extent it did not follow the statute's terms].) A lien for attorneys' fees is, in reality, "an equitable assignment for security." (*Wagner v. Sariotti* (1943) 56 Cal.App.2d 693, 697; see also *First Corp. v. County of Santa Clara* (1983) 146 Cal.App.3d 841, 842 [claiming parties do not succeed to the rights of the nonclaiming parties].)

While Vantage Point Law had lien rights in relation to Storey, Vantage Point Law had no lien rights absent Storey's submitting a claim for excess proceeds. Notably, the claim here was not

submitted *on behalf* of Storey, and even if it were, as respondents point out, it did not conform to the requirements of a claim submitted on behalf of another. (Rev. & Tax. Code, § 4675 (c) [requiring proof that certain disclosures were made when claimant seeking funds on someone else's behalf].) While the opposition argues attorneys are permitted to, and do, act on their clients' behalf frequently, the argument fails to address the specific statutory requirements of section 4675.

C. Leave to Amend

Because petitioner does not provide any facts supporting the position that amendment could cure the deficiencies discussed herein, and the Court finds there is no reasonable probability the complaint can be cured by amendment, leave to amend is denied. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687.)

VI. Petition of McDonald & Mannion, a California Professional Corporation, N25-0837

Respondents' demurrer to the petition filed by McDonald & Mannion is unopposed. (Notice of Non-Opposition filed March 16, 2026.) Respondents' motion to strike is also unopposed. Petitioner, as the referring attorney in the underlying personal injury action, concedes its rights are derivative of those asserted by Rains Lucia Stern St. Phalle & Silver, PC (the law firm responsible for obtaining the 2018 judgment). Accordingly, because the Court has sustained the demurrer to the petition of Rains Lucia, discussed above, the demurrer to the petition by McDonald & Mannion is also **sustained** and the motion to strike denied as **moot**.

VII. Petition of Global Discoveries, Ltd., N25-0755

A. Factual Background

Petitioner Global Discoveries Ltd. ("Global") is a limited liability company organized and existing under the laws of the State of Nevada, is authorized to conduct business in the State of California, and is a subsidiary of Capital Equity Management Group, Inc., a California corporation ("CEMG"). On February 21, 2023, in spite of any purported attorney liens, Storey assigned his rights in the judgment to CEMG. An Acknowledgment of Assignment of Judgment was recorded in the County's public records. (Global's First Amended Petition, filed October 2, 2025, ¶19, Ex. 2.)

Global alleges, on information and belief, that it was identified as the only party of interest on a report given to County on or about March 16, 2023. (Global's First Amended Petition, ¶17, Ex. 4.) Notably the report reflects CEMG, not Global, but on May 24, 2023, CEMG assigned to Global (CEMG's subsidiary) its rights to collect the excess proceeds. (See Global's First Amended Petition, ¶18, Ex. 5.) Global then submitted a claim for the funds on June 20, 2023. (Global's First Amended Petition, ¶19, Ex. 6.)

Respondents denied Global's claim, giving the reason that Global failed to include certain corporate documents required by the County of Contra Costa Policy Regarding Claims for Excess Proceeds. (See Global Petition, ¶127 and Request for Judicial Notice in Support of Demurrer, filed November 3, 2025, Ex. B.)

Global filed a petition for writ of mandate on April 10, 2025 and amended its petition on October 2, 2025. In the First Amended Petition, Global sets forth a single cause of action for an administrative writ of mandate pursuant to Code of Civil Procedure section 1094.5 and Revenue and Taxation Code section 4675, subdivision (g). Global seeks a writ directing respondents (1) to set aside the denial of Global's claim for excess proceeds as well as any decision to grant the claims of others, and (2) ordering respondents to release the proceeds to Global.

Respondents, after meeting and conferring with petitioner (Declaration of Jaskiran K. Samra, ¶4), now demurs on the grounds that (1) no relief is stated under Code of Civil Procedure section 1094.5 because that section does not apply, (2) even assuming section 1094.5 applies, Global cannot establish any abuse of discretion because the claim did not comply with the County's policy.

B. Request for Judicial Notice

To support their demurrer, respondents request that the Court take judicial notice of: (A) the County's Policy Regarding Claims for Excess Proceeds and the Board of Supervisor's resolution that adopted it in 2017; and (B) a "Claim Denial" letter from the County to Global Discoveries Ltd. dated March 20, 2025. Petitioner does not oppose the request, and the request is **granted**.

C. Administrative Mandamus Pursuant to Code of Civil Procedure section 1094.5

Respondents demur on the basis that there was no hearing, nor was one required, and therefore administrative mandamus is not a remedy available to petitioner. The petition gives no indication that a hearing was held or required, as required for section 1094.5 to apply. (Code Civ. Proc., §1094.5, subd. (a).)

In arguing that 1094.5 does apply, petitioner cites *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116, wherein the court proceeded under the administrative mandate statute in deciding a matter regarding excess proceeds. However, in that case, "the county held an evidentiary hearing to evaluate the claims," presided over by a hearing officer. (*Carloss, supra*, 242 Cal.App.4th at 121-122.) Further, the other cases cited by petitioner do not support the application of 1094.5. (*Mission Valley East, Inc. v. County of Kern* (1981) 120 Cal.App.3d 89, 99, fn. 6 ["This is a 'common law' or traditional mandamus proceeding under Code of Civil Procedure section 1085, not administrative mandamus under section 1094.5."]; *Azadozy v. Nikoghosian* (2005) 128 Cal.App.4th 1369, 1371 [not mentioning whether mandamus was traditional or administrative].)

A hearing is not contemplated by the statute at issue, and no hearing was held. The petition has been improperly submitted under Code of Civil Procedure section 1094.5, which applies only where the validity of a "final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer," is under review. (Code Civ. Proc., §1094.5, subd. (a).) The more complex analysis of when an administrative writ may be proper even in the absence of a hearing do not apply to the determination at issue here.

Leave to amend would be permitted if the only concern was the type of mandate being sought, but that is not the only defect here.

D. Incomplete Nature of Claim

As stated on its Claim, Global claimed excess proceeds as an assignee of a party of interest. This sort of claim is described in Revenue and Taxation Code section 4675, subdivision (b). The County's Policy requires a business making this sort of claim to "submit documents that show the business and claimant's right to make a claim." (Request for Judicial Notice, Ex. County of Contra Costa Policy Regarding Claims for Excess Proceeds, page 10, at 4.c.) Appendix B then lists the information required of a limited liability company:

A claimant making a claim on behalf of a limited liability company must provide proof claimant is a manager or officer of the limited liability company who has authority to make a claim on behalf of the company. The documentation also

must show the legal standing of the limited liability company. Suggested documents include the following:

- a. Company's resolution.
- b. Company's operating agreement.
- c. Articles of Organization.
- d. The most recent Statement of Information filed with the Secretary of State (or equivalent from state in which business operates). If the business e-filed the Statement of Information, provide a copy of the Statement of Information and a copy of the payment receipt provided by the Secretary of State.
- e. Certificate of Dissolution, if applicable.
- f. Other documents that prove claimant is a manager or officer of the limited liability company.

The demurrer contends the specified information was not included. It gives the example of the individual who signed the claim, Jed Byerly, for whom no proof was submitted to show he was, in fact, a managing member of the company. The only corporate documents submitted related to the alleged parent company, CEMG, not Global. The claim was thus incomplete.

In opposition to the demurrer, Global argues that this aspect of the demurrer disregards the allegations of Global's First Amended Petition. Global contends that the respondents had its information "on file" and that other Tax Collectors had approved other claims for excess proceeds with similar documentation. Those other claims are not properly before the Court at this time. The assertions are therefore not proof that the claim at issue *in this case* was sufficient to warrant a writ of mandate to approve the claim. More importantly, the past failure to follow its own policy is no reason for the Court to mandate that respondents ignore their own policy going forward.

The County's policy states that "[a] claimant may not rely on the Treasurer-Tax Collector's Office to approve or request information to supplement incomplete claims." (Respondents' Request for Judicial Notice in Support of Demurrer, filed November 3, 2025, Ex. A, page 3, 3.a.ii.) This undermines any reliance on respondents to communicate regarding what might be missing from the submission.

While the facts asserted in a pleading must be accepted as true on demurrer, the same is not true of legal conclusions. Global attaches a copy of the claim it submitted to the First Amended Petition. There is no genuine question as to what was, and wasn't, submitted. The Legislature has established a one-year deadline for filing claims to excess tax sale proceeds with all necessary documentation to support the claim. The Board of Supervisors adopted a policy with respect to claims for excess proceeds, consistent with Revenue & Taxation Code § 4675, and the Tax Collector followed those rules. Instead of arguing it could present facts to show its claim was complete, Global argues that it should not have been required to comply with the policy. Because the time has passed for any additional documentation to be submitted with respect to Global's claim, and because Global did not submit all required information, there is no possibility that Global could cure the incomplete

nature of its claim.

E. Leave to Amend

The facts and admissions asserted by Global preclude amendment in this case. Therefore, as a matter of law, Global cannot support a claim for writ of mandate under the circumstances.

12. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITION AND MEMORANDUM OF POINTS AND AUTHORITIES (CONTINUED FROM 03.27.2026)**
FILED BY:
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: COMPLAINT (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

14. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: TO PETITION FOR WRIT OF MANDATE (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

15. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: 1ST AMENDED PETITION (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

16. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITIONERS FIRST AMENDED PETITION FOR WRIT OF MANDATE (CONTINUED FROM 03.27.2026)**
FILED BY:
TENTATIVE RULING:

Please see Line 11.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION FOR DISCOVERY COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE**
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called "the twilight zone of abatement," in which the court maintains "merely a vestigial jurisdiction over matters submitted to arbitration." (Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally "consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not...." (Id.) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly, the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

18. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION FOR DISCOVERY COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE**
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."

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